

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sheila Donovan	Team: Team # 7	CCRB Case #: 200500348	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 01/06/2005 5:50 PM	Location of Incident: § 87(2)(b)	Precinct: 52	18 Mo. SOL 7/6/2006	EO SOL 7/6/2006	
Date/Time CV Reported Tue, 01/11/2005 2:08 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Tue, 01/11/2005 2:08 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM James-Russell Kearns	04128	933889	052 PCT
2. POF Filastin Abedrabbo	23392	933550	052 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POF Filastin Abedrabbo	Abuse: PO Filastin Abedrabbo stopped and questioned § 87(2)(b)	§ 87(2)(b)
B.POM James-Russell Kearns	Abuse: PO Jamesrussel Kearns stopped and questioned § 87(2)(b)	§ 87(2)(b)
C.POF Filastin Abedrabbo	Discourtesy: PO Filastin Abedrabbo spoke obscenely and rudely to § 87(2)(b)	§ 87(2)(b)
D.POF Filastin Abedrabbo	Abuse: PO Filastin Abedrabbo threatened § 87(2)(b) with the use of force.	§ 87(2)(b)
E.POF Filastin Abedrabbo	Abuse: PO Filastin Abedrabbo detained § 87(2)(b)	§ 87(2)(b)
F.POM James-Russell Kearns	Abuse: PO Jamesrussel Kearns detained § 87(2)(b)	§ 87(2)(b)
G.POM James-Russell Kearns	Abuse: PO Jamesrussel Kearns issued a summons to § 87(2)(b)	§ 87(2)(b)
H.POF Filastin Abedrabbo	Abuse: PO Filastin Abedrabbo refused to provide her name or shield number to § 87(2)(b)	§ 87(2)(b)

Synopsis

§ 87(2)(b) came to the Civilian Complaint Review Board on January 11, 2005 to report his complaint. § 87(2)(b) alleged that on January 6, 2005, at approximately 5:30PM inside the lobby of § 87(2)(b) PO Filastin Abedrabbo and PO Jamerussel Kearns stopped § 87(2)(b) and asked him if he lived in the building. The residential building is a participant in the New York City Trespass Affidavit Program also known as “Operation Clean Halls.” § 87(2)(b) was returning home with his wife. § 87(2)(b) refused to show the officers his identification but the officers insisted. He suggested that they follow him to his residence. They followed him upstairs to the § 87(2)(b) floor. PO Abedrabbo used the word fuck several times during the incident. When they got to the apartment § 87(2)(b) entered with his wife. PO Kearns asked § 87(2)(b) to step out of the apartment so that they could arrest him. § 87(2)(b) complied. § 87(2)(b) alleged that PO Abedrabbo took out her asp and threatened to use it. The officers brought § 87(2)(b) to the 52nd Precinct stationhouse and issued him a summons for disorderly conduct. At the stationhouse § 87(2)(b) asked PO Abedrabbo for her name but she refused to give it to him.

§ 87(2)(g)

Summary of Complaint

On January 6, 2005 at approximately 5:50PM § 87(2)(b) was returning from Penn Station where he had picked up his wife, § 87(2)(b) from work. He opened the door to the front of § 87(2)(b) with his key. Two uniformed police officers, a male and a female officer were in the building. The building has 2 entrances. § 87(2)(b) and his wife went to the right side where the south entrance is. The female officer asked, "Do you live here?" § 87(2)(b) responded, "Yes, I live here." He then turned to his wife and said in Spanish, "Do you believe this? I open the door and they ask me if I live here." The female officer said to him. "I'm the police. Show me some I.D.." § 87(2)(b) said, "Lady I don't have to show you I.D. because I'm not driving a car." She said, "Fuck you, I'm the police. You have to show me id." § 87(2)(b) said, "I don't have to show you id because I live here. If you want to follow me to my apartment be my guest, follow me."

§ 87(2)(b) and the male and female officer took the elevator to the § 87(2)(b) floor. When they got to his apartment they told him that he was going to be arrested. The officers told him, "Come outside your going to be arrested." The female officer cursed at § 87(2)(b) in front of his mother. She said, "Fuck you." The female officer took out her asp and told § 87(2)(b) that she was going to hit him with it. She said, "Shut up or I'll hit you." § 87(2)(b) offered his hands to be handcuffed and never raised his voice or swore. § 87(2)(b) never made physical contact with the officers. His neighbor came out of apartment number § 87(2)(b) and asked § 87(2)(b) what was going on. § 87(2)(b) told him that the police didn't think he lived there and the neighbor told the officers that he did. When they got outside, the officers went into § 87(2)(b) pockets. They called for a car and a van arrived. When they got to the stationhouse, § 87(2)(b) was given a summons for disorderly conduct. He asked the female officer for her name but she would not give it to him. § 87(2)(b) described the female officer as white, approximately

5'0" tall, with shoulder length brown hair, 23 or 24 years old and slim. The male officer filled out the summons.

Results of Investigation

File of Claim

§ 87(2)(b) filed a claim with the city of New York's Comptroller on § 87(2)(b) regarding the January 6, 2005 incident involving PO Abeddrabo and PO Kearns. Only PO Kearns is named in the actual claim and the second accused party in the claim is referred to as PO Kearns' "police officer partner." § 87(2)(b) is asking for \$1,000,000. In his claim he alleged that he opened the door to his building with his key and was then questioned by police without any reasonable suspicion or probable cause. He claimed assault, battery, false arrest, malicious prosecution, emotional distress, illegal search and seizure, and loss of liberty. § 87(2)(b) has not filed for a summons for this claim. § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) was interviewed on February 11, 2005 at § 87(2)(b) in the Bronx. Her interview was conducted in Spanish and translated by Investigator Vega. § 87(2)(b) stated that on January 6, 2005 her husband came to pick her up from Penn Station because she works in Long Island. When they got to their building § 87(2)(b) had his key out but a woman entered in front of them and they followed her in. The woman went to the elevators on the left and so she did not witness the incident with the police. Two police officers were in the lobby of the apartment complex. One officer was a tall white male who had his hat on so she could not see his hair. The other officer was a white female who was short with dyed blonde hair and was normal weight. § 87(2)(b) told his wife that the male officer was asking him for identification. She could not understand what they were saying because they were speaking in English. The officers followed § 87(2)(b) and § 87(2)(b) into the elevator up to the fifth floor. In the elevator, the female officer said "Fuck you" several times but those were the only words that § 87(2)(b) understood.

When they got to the fifth floor, § 87(2)(b) rang the bell to the door and his mother and her attendant answered. § 87(2)(b) and her husband went into the apartment. The police held the door open but remained outside. § 87(2)(b) mother became agitated because she saw that the police were going to take her son. The police asked § 87(2)(b) to come outside and he complied. They handcuffed him. § 87(2)(b) did not object. He allowed them to take him and they closed the door. § 87(2)(b) was acting normally during the interaction with the police.

Other Civilian Interviews

§ 87(2)(g)

§ 87(2)(g)

Officer Identification

PO Kearns was identified from the summons issued to § 87(2)(b). The roll call from the 52nd Precinct tour 3 on January 6, 2005 indicated that he was working with PO Filastin Abedrabbo. PO Abedrabbo fit the description given by § 87(2)(b).

PO Filastin Abedrabbo

Memo Book Entry

On January 6, 2005 at 5:35PM PO Abedrabbo did a vertical at § 87(2)(b) at 5:45PM she had an arrest for § 87(2)(b). “Asked perp if he lived in the building at which time the perp began acting irate and cursing loudly in the lobby of the building. He started acting disorderly by cursing and threatening PO Kearns and myself. He put his finger in PO Kearns face. I asked him for his id to prove he lived in the building at which point he started acting in a threatening violent manner by threatening us and telling us to push him and to come upstairs and fuck you I don’t have to show you shit. He also lied about not having id. The search incident to lawful arrest revealed a driver’s license with an address not matching the apartment where he claimed he lived. The driver’s license number was § 87(2)(b) going back to § 87(2)(b). The address on the driver’s license was § 87(2)(b) § 87(2)(b) in the Bronx. The perp threatened to make complaints and acted disorderly in the public lobby, in the street in front of the building cursing loudly and acting in a violent threatening manner by getting in our faces and spitting at us. PO Kearns additionally spoke to his sister, § 87(2)(b) who said he was an asshole. At 5:55PM we were 84 at the precinct. The warrant check came back negative. We found that he was previously arrested § 87(2)(b). The perp stated that he had several lawsuits against the police department. He asked for our names so that he could sue us and the department for asking him for id when he is a family man.”

Statement

PO Filastin Abedrabbo was interviewed at the CCRB on March 8, 2005. PO Abedrabbo had been working for the vice squad for a month when she was interviewed in March. On January 6, 2005 PO Abedrabbo was assigned to the 52 Pct. PO Abedrabbo worked from 4:00PM to 12:35AM. She was assigned to an impact footpost #9, § 87(2)(b) on Grand Concourse, and was working with PO Kearns. Their specific duties were visible patrol and vertical patrol. PO Abedrabbo was dressed in uniform. PO Kearns is not her regular partner.

On January 6, 2005 PO Abedrabbo and PO Jamesrussell Kearns were doing verticals to familiarize themselves with the area since it was their first time there. In the lobby of § 87(2)(b) she and her partner asked § 87(2)(b) if he lived in the building. She could not remember who asked him. He started acting disorderly at that point and did not answer the question. He was cursing at them and threatening them. He wanted them to fight him and to push him. He was saying fuck you, come get me, push me. § 87(2)(b) had a female with him. PO Abedrabbo could not remember how he entered the building, though she did observe him enter the building. He was trying to get close to the officers and was flailing his arms in their face. He was coming within less than a foot of them. His wife was trying to calm him down and pull him back by grabbing his arm. PO Kearns proceeded to arrest § 87(2)(b). They asked him to turn around and put his arms behind his back. He complied after a little while. Then he was taken back to the precinct.

§ 87(2)(g) She said that they had allowed him to get his jacket upstairs because he had said he wanted his jacket. PO Abedrabbo was not sure if he was handcuffed upstairs or downstairs. She went with him upstairs. The woman he was with got the jacket and gave it to him. They took the stairs up. She couldn’t remember what floor they were on. When asked if she remembered anyone being home at the apartment she said no. PO Abedrabbo also did not remember how he was able to get into the apartment. PO Abedrabbo stated that § 87(2)(b) did not open the door. PO Abedrabbo could not remember if § 87(2)(b) was handcuffed at the time. § 87(2)(b) did not comply so that when they searched § 87(2)(b) incident to his arrest they found an id that had a different address on it. PO Abedrabbo stated that the building is a Clean Halls building, which means that the officer reserves the right whether or not a person lives in the building to ask anyone for identification. They ask people where they live to prevent unwanted people from being in the building. PO Kearns spoke to § 87(2)(b) § 87(2)(b) sister, she asked them to give § 87(2)(b) a break and said that he was an asshole. PO Abedrabbo stated that she did not curse at § 87(2)(b) § 87(2)(b) was yelling during the entire incident. When asked why she let him go upstairs to get his jacket PO Abedrabbo stated it was out of courtesy for his wife.

Second Statement

PO Fillistine Abedrabbo was interviewed for the second time on September 21, 2005. A video of the lobby of § 87(2)(b) was presented during this interview. At approximately 5:35PM and 21 seconds § 87(2)(b) enters the building, following a female in and accompanied by a female. PO Abedrabbo pointed out the moment on the video when she addressed § 87(2)(b) for the first time. This happens on the video at 5:35 and 41 seconds and is evidenced by the fact that § 87(2)(b) turns his head toward the officers and in the next frame turns away. She stated that § 87(2)(b) said, "I live here, why are you asking me?" She stated that he walked away after this. As he moves away to the right side of the lobby the officers turn toward him and then he turns towards them again and they stand there for approximately a minute. § 87(2)(b) and his wife walk out of the video frame before PO Abedrabbo and PO Kearns. PO Abedrabbo and PO Kearns then walk in the same direction, off-frame.

PO Abedrabbo stated that § 87(2)(b) violent behavior is not apparent on the video, despite the fact that she felt threatened at the time. She explained that at the time she had had only a couple of months on patrol and had not been spoken to the way that § 87(2)(b) did. She said that she considered § 87(2)(b) behavior disorderly. PO Abedrabbo agreed that the video does not show § 87(2)(b) put his finger in her face but stated that this may have happened when they were off screen. PO Abedrabbo confirmed that she does not back away from § 87(2)(b) at any time on the video and that § 87(2)(b) does not flail his arms. PO Abedrabbo could not remember when these things happened.

PO Abedrabbo stated that when they asked § 87(2)(b) if he lived in the building he could not walk away. Her belief is that in a Clean Halls building they need to make sure that people in the building live there. The fact that § 87(2)(b) walked away raised her level of suspicion because he was uncooperative. Two people were in the lobby during the stop, as evidenced by the video. PO Abedrabbo stated that they did not get involved. PO Abedrabbo explained that in field training they learned that in a Clean Halls Building an officer has the right to stop anyone and ask for identification. Her belief was that a person cannot refuse a request for information.

PO Abedrabbo was asked if she provided her name and shield number to § 87(2)(b) and she stated that both she and her partner did. She stated that § 87(2)(b) asked them at the precinct and wrote down the shield numbers. She was asked what she wears on her belt. She stated that among other things she usually has a baton or an asp. When asked if she took anything out of her belt besides her radio during this incident she stated that she did not recall. She denied taking out her asp and threatening § 87(2)(b) with it. PO Abedrabbo could not account for the fact that § 87(2)(b) is wearing the same thing when he exited the building in handcuffs as when he entered the building before he was stopped. When asked if the footage of § 87(2)(b) leaving the building is indicative of his disorderly behavior PO Abedrabbo replied, "I'm not going to say that he was doing this upstairs and outside. He was, and I think it's unfortunate that the whole thing is not captured...."

PO Jamesrussel Kearns

Memo Book Entry

In his memo book PO Kearns noted that at 5:34PM they did a vertical at § 87(2)(b) 1 male was stopped no id a friend verified that he lived there 93Q. One male and one female stopped, male wearing gray sweater blue jeans black shoes. Male was buzzed into building using no keys. Male was stopped and questioned. Male became disorderly and was rear handcuffed and brought to the Precinct. At 5:43 we had a one under from § 87(2)(b) and at 6:38PM we issued a summons § 87(2)(b) Sgt. Stelik and Sgt. Spinolla were the supervising officers that day..

Stop and Frisk Report

The UF 250 that PO Kearns filed for § 87(2)(b) showed the time of stop being 5:35PM. It specified that § 87(2)(b) was suspected of criminal trespass. Under the heading, "What were the circumstances which led to the stop?" PO Kearns checked the box, "Other reasonable suspicion of Criminal Activity (Specify.) PO Kearns wrote, "Failure to produce I. D. in Clean Halls building."

Statement

PO Jamesrussel Kearns was interviewed at the CCRB on March 14, 2005. On January 6, 2005, PO Kearns worked from 4:00PM to 12:35AM. He was assigned to posts 3 and 4 from West Fordham to § 87(2)(b) on Grand Concourse in the Bronx. PO Kearns worked with PO Abedrabbo. PO Kearns had never worked with her before and had never worked in § 87(2)(b). He was in uniform

At approximately 5:50PM on January 6, 2005, PO Kearns and PO Abedrabbo had stopped 3 individuals in § 87(2)(b) because they were smoking cigarettes. They questioned them to see that they lived in the building. At that time they saw § 87(2)(b) come into the building and someone buzzed him in. He did not use his keys. He was with a female, PO Kearns did not know that she was his wife at the time. According to PO Kearns, being buzzed into a building indicates that he is coming in for "some other reason." § 87(2)(b) looked at the officers and shook his head and turned away. PO Abedrabbo asked him if he had any id to show that he lived in the building. He became hostile towards her saying, "You guys are just here to harass us. That's the only reason you're in this building." PO Kearns said, "Sir, all I need is to see some keys or an id, anything that tells me that you live in this building. I'll let you go." He kept on becoming hostile towards them. § 87(2)(b) approached PO Abedrabbo to the point where she stepped back. The wife did not do anything and was not asked for id since § 87(2)(b) id would have been sufficient. PO Kearns asked, "Well, can you take us up to your apartment to show us that you live there."

For another two minutes § 87(2)(b) continued to argue and then he took them up to his apartment. They went up in the elevator. § 87(2)(b) turned around and told them that they weren't doing their jobs. He told them that they were harassing a working man and that he is married. PO Kearns could not remember how PO Abedrabbo was responding. She was agitated but did not say anything to § 87(2)(b). PO Kearns did not respond to § 87(2)(b). No one was in the hallway. § 87(2)(b) wife knocked on the door and his mother answered the door. § 87(2)(b) said, "Call the lawyers, call everybody. These police officers are harassing me." He went in and got his keys, got his id. The address on the id was different but his mother verified that he lived there and he had keys to the apartment. He showed them that the keys worked in the door. He rattled everything in PO Kearns' face and said, "Now are you happy? Now are you satisfied?" § 87(2)(b) was about 6 inches inside the doorway. § 87(2)(b) pointed his finger in PO Kearns' face at which point PO Kearns decided to handcuff § 87(2)(b). PO Kearns and PO Abedrabbo consulted with each other and agreed to arrest § 87(2)(b). PO Kearns asked § 87(2)(b) to step outside and put his hands behind his back. § 87(2)(b) was compliant at this point.

Police Documents

Summons § 87(2)(b)

PO Kearns issued summons § 87(2)(b) to § 87(2)(b) for disorderly conduct Penal Law 240.20 subsection 1. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] In his file of claim it is stated that the summons was dismissed on § 87(2)(b) for factual insufficiency.

CCRB History

Civilian CCRB History

§ 87(2)(b) has made three other CCRB complaints § 87(2)(b)

PO Abedrabbo CCRB History

PO Abedrabbo has three open investigations at the CCRB. All of these incidents have taken place in the year 2005. PO Abedrabbo was appointed to the NYPD on January 20, 2004 and has one year of tenure. It

is worth noting that though there has been no determination on any of the allegations in these cases the other two cases include discourtesy allegations with the use of the word “Fuck” by PO Abedrabbo.

PO Kearns CCRB History

This is PO Kearns’ first complaint at the CCRB.

Conclusions and Recommendations

Undisputed Facts

On January 11, 2005 at 5:30PM § 87(2)(b) and his wife § 87(2)(b) entered § 87(2)(b) in the Bronx, a TAP Affidavit building. Upon entering the building § 87(2)(b) was stopped by PO Abedrabbo and PO Kearns, who asked if he lived in the building. PO Abedrabbo asked him for his identification. PO Kearns also asked him to identify himself. § 87(2)(b) refused and continued on his way to the elevators in the building. PO Abedrabbo and PO Kearns followed § 87(2)(b) to apartment 524. § 87(2)(b) was handcuffed and brought to the precinct but was later released with a summons for disorderly conduct.

Disputed Facts

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Credibility

§ 87(2)(b)

§ 87(2)(g)
§ 87(2)(g)
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§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(g)
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§ 87(2)(g)
§ 87(2)(g)

PO Abedrabbo

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g)

PO Kearns

§ 87(2)(g)

Determination of Fact

According to PO Kearns, he and PO Abedrabbo stopped § 87(2)(b) in order to determine if he lived in the building. The location § 87(2)(b) is part of the NYPD's Trespass Affidavit Program. According to the Guidelines for Citizen Encounters in TAP Buildings it states "Filing of a TAP affidavit by a residential building owner authorizes officers to routinely and freely enter the building and to patrol areas that are not tenant-exclusive. Interactions between officers and any civilians they encounter in these areas are governed by the same rules that apply to street encounters." § 87(2)(g)

Allegation A: PO Filastin Abedrabbo stopped and questioned § 87(2)(b)

Allegation B: PO Jamesrussel Kearns stopped and questioned § 87(2)(b)

According to the NYPD Legal Bureau's Guidelines for Citizen Encounters in TAP Buildings the following is stated.

If the officer has only a whim or caprice without any articulable basis for initiating an encounter with a person, then he may not approach, question nor detain the person.... This articulable reason is not necessarily a reason to believe that criminality is afoot, but simply a series of facts the officer can identify which provide a basis to approach the person and ask certain non-accusatory questions. At this stage, an officer may ask a person his name, address, reason for being in the area and an explanation of the conduct or item that prompted the approach. The person approached may simply walk away and/or refuse to cooperate. The officer may not detain the person or restrict his freedom to walk away.

§ 87(2)(g)

Allegation C: PO Filastin Abedrabbo spoke obscenely and rudely to § 87(2)(b)

§ 87(2)(b) alleged that PO Abedrabbo used the word fuck when she talked to him. § 87(2)(b) also stated that PO Abedrabbo said "Fuck." § 87(2)(g)

Patrol Guide Procedure Number 203-09 regarding public contact states that an officer must, "Be courteous and respectful." § 87(2)(g)

Allegation D: PO Filastin Abedrabbo threatened § 87(2)(b) with the use of force.

§ 87(2)(g)

Allegation E: PO Filastin Abedrabbo detained § 87(2)(b)

Allegation F: PO Jamesrussel Kearns detained § 87(2)(b)

PO Abedrabbo and PO Kearns detained § 87(2)(b) after he had shown them where he lived. PO Abedrabbo claimed that § 87(2)(b) was going to be arrested for § 87(2)(b) even before they followed him to his apartment. PO Kearns stated that § 87(2)(b) jingled his keys in his face and pointed a finger from inside his apartment. § 87(2)(g)

According to Penal Law regarding Disorderly Conduct subsection 1 it states, “A person is guilty of disorderly conduct when with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof: he engages in fighting or in violent, tumultuous or threatening behavior.” § 87(2)(g)

Allegation G: PO Jamesrussel Kearns issued a summons to § 87(2)(b)

§ 87(2)(g)

Allegation H: PO Filastin Abedrabbo refused to provide her name and shield to § 87(2)(b)

§ 87(2)(g)

Patrol Guide Procedure Number 203-09 regarding public contact states, “Courteously and clearly state your rank, name, shield number and command, or otherwise provide them, to anyone who requests you to do so. Allow the person ample time to note this information.” § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: